Lead Broker Blueprint by Lorenzo Marietti

Module 3 deliverable

Compliance Checklist

Six sections. ~60 items. Each cites the regulation it satisfies.

How to use this checklist

Work through every applicable item before launch. For each item:

- **Check the box only when you can produce the artifact named in the right column.**
- **Save the artifact and tag it with the item it satisfies.**
- **Re-verify quarterly. Regulations change; the course publishes a refreshed checklist each quarter.**

Section 5 is vertical-specific. Apply only the rows for your vertical. Treat the rest of Section 5 as informational background.

This checklist is the operational floor; it is **not legal advice** for your specific situation. Counsel familiar with your vertical and operating states is the next step beyond the checklist.

Section 1 — Telephony & texting (TCPA, DNC, TSR)

The single largest source of litigation exposure for lead generators. Work through every item before you place a single marketing call or send a single marketing text.

☐ **Every marketing call or text to a mobile number captures Prior Express Written Consent (PEWC) before contact.** **Regulation:** TCPA / 47 C.F.R. § 64.1200(f)(9).	**Artifact:** Form disclosure language; signed consent record; TrustedForm or Jornaya certificate URL. **Source:** *47 U.S.C. § 227; 47 C.F.R. § 64.1200.*
☐ **Consent disclosure satisfies all four PEWC elements: clear and conspicuous; authorizes autodialer/prerecorded contact; states consent is not a condition of purchase; consumer's signature.** **Regulation:** 47 C.F.R. § 64.1200(f)(9) (four elements).	**Artifact:** Page screenshots; legal review note; explicit checkbox-and-signature design. **Source:** *47 C.F.R. § 64.1200(f)(9).*
☐ **PEWC disclosures name the specific seller(s) to whom calls/texts are authorized. Single-seller (one-to-one) format used where buyer contracts require it.** **Regulation:** Post-IMC v. FCC; multi-seller permitted as regulatory matter; buyer contract often stricter.	**Artifact:** Disclosure language; vendor-side validation that named parties match buyer contracts. **Source:** *Insurance Marketing Coalition v. FCC, No. 24-10277 (11th Cir. Jan. 24, 2025).*
☐ **Revocation handling: any reasonable means (STOP, email, verbal) is honored within 10 business days; no exclusive channel required.** **Regulation:** FCC Revocation Rule, effective April 11, 2025.	**Artifact:** Documented revocation channels; CRM workflow ticket showing propagation within 10 BD. **Source:** *FCC Final Rule, CG Docket 02-278 (Feb. 15, 2024; effective April 11, 2025).*
☐ **Confirmation-text safe harbor: at most one non-marketing confirmation text within 5 minutes of revocation receipt.** **Regulation:** FCC Revocation Rule (5-minute safe harbor).	**Artifact:** Confirmation-message template; STOP-keyword routing config. **Source:** *FCC Final Rule, CG Docket 02-278.*
☐ **Revocation propagates across all downstream parties (every buyer of the lead, every seller in the consent chain).** **Regulation:** FCC Revocation Rule (scope-of-revocation).	**Artifact:** Lead distribution platform's revocation-write-back mechanism (LeadConduit or equivalent); audit log. **Source:** *FCC Final Rule, CG Docket 02-278.*
☐ **National DNC Registry scrubbed within the regulators' timing window (≤31 days) before any campaign call or text.** **Regulation:** TCPA + TSR.	**Artifact:** Scrubbing-vendor contract; scrub-date timestamps; campaign-level proof. **Source:** *16 C.F.R. § 310; 47 C.F.R. § 64.1200(c).*

☐ **STOP responses are treated both as consent revocation and as a DNC-equivalent signal across voice and text.** **Regulation:** FCC TCPA rules; FCC text-message orders (2023).	**Artifact:** STOP-handling workflow that suppresses all future marketing contact, voice or text. **Source:** *47 C.F.R. § 64.1200; FCC orders on text-message DNC.*
☐ **Predictive-dialer abandoned-call rate under the TSR safe harbor (3% over 30-day per-campaign rolling window).** **Regulation:** TSR § 310.4(b)(4).	**Artifact:** Dialer abandonment metrics; campaign-level monitoring; live-agent connection logs. **Source:** *16 C.F.R. § 310.4(b)(4).*
☐ **Caller ID accurately transmitted on outbound calls (seller name or telemarketer name).** **Regulation:** TSR § 310.4(a)(8).	**Artifact:** Dialer configuration; Caller ID validation. **Source:** *16 C.F.R. § 310.4(a)(8).*
☐ **Five-year record retention for TSR-required records (ads, employee names, sales records, authorizations).** **Regulation:** TSR § 310.5.	**Artifact:** Document retention policy with five-year minimum; storage location and access controls. **Source:** *16 C.F.R. § 310.5.*

Section 2 — Advertising content (FTC Endorsement Guides + Reviews Rule + Section 5)

Every landing page, email, social ad, and operator-facing sales page is in scope. The October 2024 Reviews Rule has put fake or unsubstantiated content directly at civil-penalty risk.

☐ **No fake or AI-generated reviews or testimonials anywhere in the marketing stack.** **Regulation:** FTC Reviews Rule (effective Oct. 21, 2024).	**Artifact:** Audit log; landing-page inventory with confirmed-real-reviewer records. **Source:** *16 C.F.R. Part 465.*
☐ **No buying or selling of reviews (positive or negative; cash or non-cash compensation).** **Regulation:** FTC Reviews Rule.	**Artifact:** Policy statement; vendor agreements prohibiting paid-review acquisition. **Source:** *16 C.F.R. Part 465.*
☐ **No insider reviews (employees, agents, family) without clear material-connection disclosure.** **Regulation:** FTC Reviews Rule; Endorsement Guides.	**Artifact:** Internal policy; review-source audit. **Source:** *16 C.F.R. Part 465; 16 C.F.R. § 255.5.*
☐ **No review suppression — no threats of legal action to remove honest negative reviews.** **Regulation:** FTC Reviews Rule.	**Artifact:** Internal escalation policy; documentation of how negative reviews are handled. **Source:** *16 C.F.R. Part 465.*
☐ **No advertiser-controlled "independent" review sites; if you run a review-style domain, its ownership is disclosed.** **Regulation:** FTC Reviews Rule.	**Artifact:** Domain ownership disclosures on any owned review-style site. **Source:** *16 C.F.R. Part 465.*
☐ **No fake social-media metrics (bought followers, likes, engagement).** **Regulation:** FTC Reviews Rule.	**Artifact:** Social-media auditor results; vendor agreements. **Source:** *16 C.F.R. Part 465.*
☐ **Material connections to endorsers (payments, free products, employment, family) are clearly and conspicuously disclosed.** **Regulation:** FTC Endorsement Guides (revised June 2023).	**Artifact:** Disclosure language; influencer-contract template; pre-publication review process. **Source:** *16 C.F.R. Part 255.*
☐ **No "results not typical" boilerplate where atypical results are featured; substantive typical-result context provided.** **Regulation:** FTC Endorsement Guides.	**Artifact:** Marketing-claim substantiation file; typical-results data. **Source:** *16 C.F.R. Part 255.*
☐ **Every advertising claim has adequate substantiation on file.** **Regulation:** FTC Act § 5 (15 U.S.C. § 45).	**Artifact:** Claim-substantiation file mapping claims to evidence. **Source:** *FTC Act § 5; FTC Policy Statement on Advertising Substantiation.*

Section 3 — Email (CAN-SPAM)

Email is the least-strict regime among the federal marketing-channel rules, but the five core requirements still apply to every commercial email.

☐ **Accurate "from" and "reply-to" header information identifying the sender.** **Regulation:** CAN-SPAM § 7704(a)(1).	**Artifact:** Email-platform sender configuration; SPF / DKIM / DMARC alignment. **Source:** *15 U.S.C. § 7704.*
☐ **Non-deceptive subject lines.** **Regulation:** CAN-SPAM § 7704(a)(2).	**Artifact:** Subject-line review process; pre-send approval workflow for promotional emails. **Source:** *15 U.S.C. § 7704.*
☐ **Commercial emails identified as advertisements (explicitly if not obvious from content).** **Regulation:** CAN-SPAM § 7704(a)(5).	**Artifact:** Email template inclusion of advertisement-identification language. **Source:** *15 U.S.C. § 7704.*
☐ **Every commercial email includes a valid physical postal address of the sender.** **Regulation:** CAN-SPAM § 7704(a)(5).	**Artifact:** Email-template audit; current registered business address on file. **Source:** *15 U.S.C. § 7704.*
☐ **Clear opt-out mechanism honored within 10 business days; opt-outs respected for at least 30 days post-message.** **Regulation:** CAN-SPAM § 7704(a)(3)–(4).	**Artifact:** Unsubscribe link in every email; ESP unsubscribe-list propagation; 30-day-honor policy. **Source:** *15 U.S.C. § 7704.*

Section 4 — Privacy (state laws, FCRA touchpoints, data-broker registration)

Build to the California standard unless you have a specific reason not to. Re-verify quarterly — new state laws keep going into effect.

☐ **Public privacy notice covers California CCPA/CPRA disclosure requirements (categories of data collected, purposes, sale, retention, consumer rights).** **Regulation:** CCPA/CPRA, Cal. Civ. Code § 1798.100 et seq.	**Artifact:** Privacy notice on every consumer-facing site; legal review. **Source:** *Cal. Civ. Code § 1798.100 et seq.*
☐ **Lead-data transfers to buyers / aggregators recognized and disclosed as "sale of personal information" in CCPA and other state notices.** **Regulation:** CCPA "sale" definition; equivalent state-law sale definitions.	**Artifact:** Notice language; sale-flow documentation. **Source:** *Cal. Civ. Code § 1798.140(t).*
☐ **Consumer rights honored (access, deletion, correction, opt-out of sale / targeted advertising) across all states with applicable laws.** **Regulation:** CCPA, VCDPA, CPA, CTDPA, UCPA, TDPSA, and successor state laws.	**Artifact:** Privacy-request intake workflow; response-time SLA; recordkeeping. **Source:** *State privacy statutes (see citation reference sheet).*
☐ **Global Privacy Control (GPC) signals honored as opt-out-of-sale requests where applicable.** **Regulation:** CCPA/CPRA regulations; equivalent state rules.	**Artifact:** Site-side GPC detection; documented opt-out propagation. **Source:** *Cal. Code Regs. tit. 11, § 7025 (CPPA regulations on GPC).*
☐ **Data-broker registration completed in California, Texas, Vermont, and Oregon if the operator meets each state's definition.** **Regulation:** State data-broker registration statutes.	**Artifact:** Annual registrations; metric submissions where required. **Source:** *Cal. Civ. Code § 1798.99.80; Tex. Bus. & Com. Code Ch. 509; Vt. Stat. tit. 9 § 2430; Or. Rev. Stat. § 646A.602.*
☐ **Reasonable security measures and breach-notification process in place for personal information held.** **Regulation:** State privacy laws + state breach-notification laws.	**Artifact:** Information-security policy; incident-response plan; encryption at rest and in transit. **Source:** *State privacy and breach-notification statutes.*
☐ **No use of consumer-report data without an FCRA-permissible purpose; no purchases of "pre-screened" lead lists without diligence on source.** **Regulation:** Fair Credit Reporting Act.	**Artifact:** Vendor-diligence documentation; lead-source contractual reps. **Source:** *15 U.S.C. § 1681 et seq.*

Section 5 — Vertical-specific (apply only the rows for your vertical)

Map your vertical onto its specific regulatory layer. Treat the rest of this section as informational background.

☐ **[LEGAL] Compensation structured as per-lead flat fees for advertising; not as percentage of recovery or contingent on outcome.** **Regulation:** ABA Model Rule 5.4; state bar variations.	**Artifact:** Lead purchase agreement structure; state-by-state bar review for attorney clients. **Source:** *ABA Model Rules of Professional Conduct, Rule 5.4.*
☐ **[LEGAL] Advertising representations comply with ABA Model Rules 7.2 (advertising) and 7.3 (solicitation), as adopted by the state of the attorney client.** **Regulation:** ABA Model Rules 7.2, 7.3.	**Artifact:** State-by-state review of marketing copy; bar-ethics-opinion file. **Source:** *ABA Model Rules 7.2, 7.3.*
☐ **[MORTGAGE] NMLS licensure verified for the lead provider in every state where activity requires it.** **Regulation:** NMLS state licensing.	**Artifact:** Active NMLS registrations; renewals tracked. **Source:** *Nationwide Multistate Licensing System; state mortgage codes.*
☐ **[MORTGAGE] Pay-per-lead compensation structured as reasonable payment for marketing services rendered; not contingent on funding or as a percentage of loan amount.** **Regulation:** RESPA Section 8; CFPB Bulletin 2015-05.	**Artifact:** Marketing services agreement; documented service deliverables; reasonable-value analysis. **Source:** *12 U.S.C. § 2607; CFPB Bulletin 2015-05.*
☐ **[INSURANCE] State producer (agent) licensing held for any activity that crosses into solicitation or negotiation of insurance.** **Regulation:** State insurance codes; NAIC Producer Licensing Model Act.	**Artifact:** Active state producer licenses; CE compliance. **Source:** *State insurance department licensing requirements.*
☐ **[INSURANCE] Compensation to non-licensed marketers does not violate state anti-rebating laws.** **Regulation:** State anti-rebating statutes; NAIC commission-splitting rules.	**Artifact:** Compensation structure documented; legal-review opinion. **Source:** *State insurance codes (vary by state).*
☐ **[INSURANCE-MEDICARE] CMS Medicare Communications and Marketing Guidelines complied with — scope of appointment, recording, prohibited claims about plan benefits.** **Regulation:** CMS MCMG (annual edition).	**Artifact:** Agent training records; SOA documentation; recording retention. **Source:** *42 C.F.R. § 422.2260 et seq.; CMS Medicare Communications & Marketing Guidelines.*

☐ **[HEALTHCARE] HIPAA-compliant authorization captured before any use of PHI for marketing purposes; otherwise no PHI captured.** **Regulation:** HIPAA Privacy Rule.	**Artifact:** Authorization form; data-handling policy that segregates PHI from non-PHI flows. **Source:** *45 C.F.R. §§ 164.501, 164.508.*
☐ **[ADDICTION TREATMENT] No percentage-based or per-acquired-patient compensation to marketers; per-lead flat fees only, structured as advertising payments.** **Regulation:** EKRA, 18 U.S.C. § 220.	**Artifact:** Compensation structure documented; legal-review opinion. **Source:** *18 U.S.C. § 220.*
☐ **[INVESTIGATIVE] State private-investigator licensing complied with by the operator and downstream parties.** **Regulation:** State PI licensing statutes.	**Artifact:** License registrations; downstream-party diligence. **Source:** *State PI licensing codes (vary by state).*

Section 6 — Documentation & operations

The compliance posture has to leave evidence. If you cannot produce the artifacts under audit, you cannot defend the compliance posture in litigation.

☐ **Consent records retained for at least five years; tamper-evident certificate URLs accessible per delivered lead.** **Regulation:** TCPA / TSR / general litigation-defense posture.	**Artifact:** Certificate-URL database; retention policy; sampling-and-audit process. **Source:** *16 C.F.R. § 310.5 (TSR retention); operator best practice.*
☐ **Vendor and supplier contracts include reps and warranties on consent, source, and compliance.** **Regulation:** Cross-cutting (TCPA, FTC, state privacy).	**Artifact:** Master supply agreement template; signed counterparty agreements. **Source:** *Industry-standard contract clauses.*
☐ **Indemnification flows from lead-source to lead-provider to lead-buyer for breach-of-rep claims.** **Regulation:** Cross-cutting.	**Artifact:** Mutual indemnification clauses in supply and buyer contracts. **Source:** *Industry-standard contract clauses.*
☐ **Audit-trail evidence is preserved for at least three years for every operational step (lead capture, distribution, contact, revocation handling).** **Regulation:** Cross-cutting.	**Artifact:** Audit-log retention policy; logging at every workflow step. **Source:** *Operator best practice.*
☐ **Documented quarterly compliance review with sign-off; this checklist re-verified each quarter.** **Regulation:** Cross-cutting.	**Artifact:** Quarterly compliance review minutes; this checklist with verification dates. **Source:** *Course recommendation.*
☐ **Counsel relationship established for the operator's primary vertical and operating states.** **Regulation:** Cross-cutting.	**Artifact:** Engagement letter with vertical-specialist counsel. **Source:** *Operator best practice.*

Verification sign-off

Operator name: _____

Verification date: _____

Next verification due: _____

Counsel reviewed (Y/N) and counsel name: _____

Notes / open items:

Standing disclosures

This checklist is a research-based aid, not legal advice. Regulations cited are current as of May 2026 and will be re-researched on a quarterly cadence. Every regulatory claim links to a primary source; verify before relying on it for any specific operational decision. No income claims are made or implied. The course author is a curriculum builder, not a multi-million-dollar lead-gen operator.